

Framework Guiding Principles and Common Governance Process Standards

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^A OS-PCORTF Project Information: <https://aspe.hhs.gov/creating-new-data-research-environment>.

The Linkage Governance Framework endeavors to enable safe and secure data linkages that have been too complex and difficult to create in the past. These complex linkages are made possible by providing a forum and process for dataset holders to collaborate and by fostering trust, transparency, and mutual recognition around the potential value of linking individual-level health data for research.

This document introduces seven guiding principles that establish the framework's core values and twelve standards that translate the guiding principles into clear expectations for how the Common Governance Process should run day to day.

Guiding Principles

The seven guiding principles articulate the core values that drive the framework's purpose, processes, and objectives are:

Principle 1. Ensuring access: Investigators must have access to linked individual-level health data, as it is essential for advancing research that improves the lives of all Americans.

Principle 2. Balancing linkage with protection of data: Dataset holders must balance advancing data linkages for research while safeguarding individual privacy, ensuring data security, and complying with applicable laws and policies.

Principle 3. Encouraging a patient-centered approach: Governance decision making must incorporate patient perspectives whenever possible, and dataset holders' patient representatives are important participants in the Common Governance Process.

Principle 4. Upholding authority and accountability: The Linkage Governance Framework upholds the authority(-ies) of dataset holders, investigators, and requesting institutions:

- 4a.** Dataset holders are responsible for decisions about access, sharing, linkage, use, and dissemination of their data.
- 4b.** Investigators and requesting institutions are responsible for conducting research and managing associated risk.

Principle 5. Advancing transparency and collaboration: Effective governance relies on decision making that is transparent, collaborative, and cooperative to facilitate data linkage for research.

Principle 6. Ensuring documentation and reproducibility: The Linkage Governance Framework requires the documentation of inputs, decisions, and outcomes to support the reproducibility and integrity of research findings and future efforts.

Principle 7. Promoting continuous improvement: The Linkage Governance Framework evolves through continuous improvement to adapt to changing needs and enhance governance effectiveness.

Common Governance Process Standards

The Common Governance Process operationalizes the framework's guiding principles and includes three stages (Intake, Screening, and Rule Harmonization). The process is designed to seek creative solutions to enable data linkage for research by streamlining governance information gathering and analysis, aligning dataset holders review processes, and creating a forum for dataset holders to collaborate as they attempt to harmonize governance rules. The twelve standards defined below explain how the guiding principles may be operationalized in the Common Governance Process.

Standard 1: The Common Governance Process involves Intake, Screening, and Rule Harmonization, and results in the approval or denial of a requested data linkage.

There is a range of governance work that happens across the research lifecycle though not all of it is encompassed in this process. The Common Governance Process is limited to receiving and processing a request, facilitating screening by dataset holders, conducting rule harmonization to create a consolidated rule set, and coordinating the linkage request approval or denial. The process starts when a request package is submitted and ends when a request is approved or denied. The Common Governance Process does not engage in the governance activities that precede the request submission (e.g., scientific merit review, IRB and Privacy Board review, linkage design) and expects some governance activities to follow a linkage request approval (e.g., executing data use agreements or DUAs, executing contracts with business associates, collecting fees, implementing linkage).

Standard 2: The Common Governance Process is designed for investigators proposing complex data linkages for research.

The governance complexity surrounding linking datasets can delay or even derail research and some linkages are more complex than others. Complex linkage refers to linkages that entail a high level of governance complexity, including linking three or more datasets, thereby involving multiple sets of request forms, asynchronous review processes, complicated technical architecture, or a novel linkage approach. The creation of the Linkage Governance Framework was inspired by a desire to streamline complex linkages through a flexible and scalable governance process.

Standard 3: The Common Governance Process facilitates decision making through cooperation and collaboration.

The Linkage Governance Framework creates an interface between dataset holders and the investigator/requesting institution to enable decisions via the Common Governance Process with support from the coordinating body. The Framework does not establish a governing body. It facilitates decision making but does not make decisions. Dataset holders retain their authority to approve or deny requests to access and link data and approve or deny the consolidated rule set that will govern the resulting linkage implementation, research, and linked dataset. Investigators/Requesting Institutions are not beholden to the coordinating body or the Framework, rather they remain accountable to the dataset holders from which they request and receive data for linkage.

Standard 4: The Common Governance Process relies on clearly defined roles and responsibilities.

Clearly defined roles and responsibilities are essential for the Common Governance Process to operate effectively. The roles that participate in the Common Governance Process are the investigator/requesting institution, dataset holder, and coordinating body. All aspects of the process must identify the entity responsible for each activity and making each operational or governance decision.

Standard 5: The Common Governance Process prioritizes transparency to investigators/requesting institutions and dataset holders.

The Common Governance Process is intended to be transparent through clear and comprehensive process documentation, progress tracking by the coordinating body, and timely communication with the investigator/requesting institution and dataset holders. All parties will understand how the process works, what decisions need to be made, and where the request is within this process.

Standard 6: Participation in the Common Governance Process is voluntary.

The Linkage Governance Framework is not a mandate. Dataset holders and Investigators/Requesting Institutions determine if, how, and how much they will participate in the Linkage Governance Framework and may change their decision. Investigators/Requesting Institutions choose if they will submit their data linkage requests to the Common Governance Process or instead use existing governance processes. Dataset Holders choose which datasets are available through the Common Governance Process. While investigators/requesting institutions and Dataset Holders decide whether to engage with the process, the framework relies on widespread adoption and participation to achieve its ambitious objectives.

Standard 7: The Common Governance Process accommodates each dataset's unique governance and does not change Dataset Holders' policies.

The Common Governance Process is flexible and can accept any type of policy and the associated governance rules a dataset follows. The Common Governance Process harmonizes governance rules across datasets without altering dataset holder policies. When harmonized rules are not possible, the coordinating body works with dataset holders to determine what changes could make harmonization possible.

Standard 8: The Common Governance Process preserves Dataset Holders' responsibility to appraise risks associated with linking data.

The Linkage Governance Framework recognizes that permitting access and linkage of datasets is a decision that includes inherent risks for dataset holders. Granting an investigator/requesting institution access to a dataset increases a dataset's exposure to misuse, data security events, and privacy incidents involving individuals in that dataset. The Common Governance Process is premised on balancing risks with the potential benefits of the proposed research and supports dataset holders' careful review of risk(s) that may ultimately result in denying an investigator/requesting institution's request.

Standard 9: The Common Governance Process accommodates any safe and secure data linkage method.

Two common methods to link datasets used in biomedical research are clear text linkage¹ and privacy-preserving record linkage² (PPRL). The Common Governance Process is agnostic to linkage method and accepts requests regardless of method. Recognizing that some dataset holders have policies that limit linkage to one method, the Common Governance Process provides a forum where dataset holders may consider if and how alternate linkage methods can be made permissible.

Standard 10: A consolidated rule set must contain rules on critical linkage topics.

The consolidated rule set provides a single set of rules to support safe and secure linkage that, if followed, enables compliance with the policies of the requested datasets and dataset holders. While dataset holders will contribute a multitude of rules on various topics through rule harmonization, linkage-specific issues might not be addressed by current governance policies and could be poorly represented in the consolidated rule set as a result. Thus, the coordinating body and dataset holders must ensure that the consolidated rule set addresses the following linkage-specific topics:

- Permitted linkage method(s);
- Permissibility or prohibition of individual reidentification;
- Potential increased risk of reidentification of individuals due to linking datasets;
- Presence of **protected health information** (PHI) in the linked dataset;
- Ownership and stewardship of the linked dataset;
- Reuse and/or disposition of the linked dataset;
- How requested datasets will remain secure throughout the linkage process;
- Parameters for managing the linked datasets;
- Attribution of the dataset holders, requested datasets, and framework;
- Enforcement of governance rules throughout the research lifecycle; and
- Requirements for reporting the outcome of linkage, research results, and study completion.

Standard 11: The finalized consolidated rule set includes the rules that the requesting institution and the dataset holder agree can govern the linkage implementation and resulting linked dataset.

The consolidated rule set that is produced during rule harmonization is an essential output of

¹ Clear text linkage refers to the process of linking health data records that contain unencrypted personally identifiable information, such as names and dates of birth, by directly comparing these identifiers across different datasets to determine if records belong to the same individual.

² PPRL is “a means of connecting records using secure, pseudonymization processes in a data set that refer to the same individual across different data sources while maintaining the individuals’ privacy.” (Source: <https://covid.cd2h.org/PPRL/>)

the Common Governance Process. A consolidated rule set cannot be finalized until it has been approved by all dataset holders and accepted by the investigator/requesting institution. While this step concludes the formal Common Governance Process, the finalized consolidated rule set could be formally established for the proposed research by incorporating those rules into data use agreements between the investigator/requesting institution and the dataset holders.

Standard 12: Continuous improvement requires the Common Governance Process to evolve based on changes in and best practices from the data and research ecosystem.

Continuous improvement in the Common Governance Process includes soliciting input from partners to improve user experience, studying patterns in approved and denied requests, and identifying governance rules that block linkages from being approved. The coordinating body engages investigators/requesting institutions and dataset holders to learn about their experience and reveal how the process may be refined. Because denied requests can offer lessons about what causes denials and where in the process denials occur, the coordinating body reviews denial patterns to explore how the process can better support requests in achieving approval. The coordinating body records which rules are impossible to harmonize and passes back policy collisions to dataset holders to encourage alignment across the ecosystem.